

SOLVED PRACTICE WORKBOOK

PM and Council of Ministers - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

PM and Council of Ministers	
REFRESHED TEACHING NAVIGATION – BACKCORE FIRST	
01 CONSTITUTIONAL POSITION; FORMAL HEAD, REAL EXECUTIVE AND RESPONSIBLE <i>"Real executive" and "nominal executive" are analytical descriptions.</i>	02 APPOINTMENT OF THE PRIME MINISTER AND A HUNG LOK SABHA <i>These examples show why appointment and survival are different.</i>
03 QUALIFICATIONS, THE NON-MP RULE, OATH, TERM AND EMOLUMENTS <i>Qualifications, the non-MP rule, oath, term and emoluments operate.</i>	04 THE PRIME MINISTER'S POWERS: FIVE ARENAS <i>Party authority is political, not an additional constitutional power.</i>
05 ARTICLE 78: THE PM-PRESIDENT INFORMATION BRIDGE <i>The decisive contrast is between place before Council if President.</i>	06 ARTICLE 74: AID, ADVICE, RECONSIDERATION AND JUDICIAL INQUIRY <i>The decisive contrast is between Article 74(2); court cannot inquire.</i>
07 ARTICLE 75 CLAUSE-BY-CLAUSE <i>The operative mechanism matters because 75(1)(b) specified defections.</i>	08 THREE KINDS OF MINISTERIAL RESPONSIBILITY <i>"No legal responsibility" is a narrow constitutional comparison.</i>
09 COUNCIL OF MINISTERS VERSUS CABINET <i>Its principal consequence is that dimension Council of Ministers.</i>	10 MINISTERIAL RANKS AND STATUS LABELS <i>Cabinet Minister, Minister of State and Deputy Minister are.</i>
11 THE 91ST AMENDMENT: MINISTRY CAP AND DEFECTOR BAR <i>The amendment reduces the use of ministerial office as patronage.</i>	12 PM RESIGNATION, DEATH, MINISTERIAL EXIT AND CONTINUITY <i>PM resignation, death, ministerial exit and continuity denotes the.</i>
13 ARTICLE 77 AND THE RULES OF BUSINESS <i>Both rule sets are framed under Article 77(3).</i>	14 CABINET COMMITTEES <i>Its principal consequence is that chair/Votes by committee and.</i>
15 CABINET SECRETARIAT: THE COORDINATION HUB <i>The decisive contrast is between implementation monitoring and.</i>	16 PRIME MINISTER'S OFFICE <i>The PMO is non-constitutional and non-statutory. It is a staff and.</i>
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19 MAJORITY, COALITION, MINORITY AND CARETAKER SITUATIONS <i>Careless government is not constitutionally exceptional. It is one.</i>	20 PARLIAMENTARY ACCOUNTABILITY <i>Effective accountability therefore depends on information, committee.</i>
21 CABINET GOVERNMENT OR PRIME-MINISTERIAL GOVERNMENT <i>"Prime ministerial government" is associated with scholars such as.</i>	22 CABINET GROWTH AND PARLIAMENT'S MARGINALISATION <i>The 2014-05-09 phrase "marginalisation of parliamentary supremacy".</i>
23 REFORM ARCHITECTURE <i>The decisive contrast is between Parliament's limited time Predictable.</i>	24 MASTER COMPARISON AND TRAP FIREWALL <i>Master comparison and trap firewall operates through Prime Minister.</i>

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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PM and Council of Ministers - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. Article 74 inquiry bar

Which statement is most accurate?

A. Article 74(2) bars inquiry into whether any, and if so what, ministerial advice was tendered, but does not immunise every resulting executive act. B. Article 74(2) bars all judicial review of Union executive action. C. Article 74 permits the President to reject reconsidered advice. D. Article 74 creates a Council without requiring a Prime Minister.

Answer: A.

Explanation: [FACT] The advice itself is protected from judicial inquiry. [LIMIT] Courts may still examine the legality, jurisdiction, mala fides or constitutional validity of resulting action and relevant material.

OM2. Hung Lok Sabha

When rival groups claim a Lok Sabha majority, the most constitutionally defensible final test is:

A. certification by the Election Commission. B. a floor test in Lok Sabha. C. the President's personal estimate. D. approval by Rajya Sabha.

Answer: B.

Explanation: [ANALYSIS] The President may make a provisional invitation, but legislative confidence must be demonstrated on the House floor. Rajya Sabha does not decide Union government survival.

OM3. Non-member Prime Minister

A person who is not a member of either House may remain Prime Minister without entering Parliament for:

A. one year. B. three months. C. six consecutive months. D. the entire Lok Sabha term.

Answer: C.

Explanation: [FACT] Article 75(5) supplies the six-consecutive-month window. *S. P. Anand* confirms that it applies to the PM.

OM4. Oath

Which pairing is correct?

A. PM oath - Chief Justice of India - Article 76 B. PM oath - Lok Sabha Speaker - Article 88 C. PM oath - Vice-President - Article 74 D. PM oath - President - Article 75(4) and Third Schedule

Answer: D.

Explanation: [FACT] The President administers oaths of office and secrecy to Union ministers under Article 75(4).

OM5. Article 78

Which is an express Article 78 duty of the Prime Minister?

A. To place before the Council, if the President requires, a ministerial decision not previously considered by the Council. B. To countersign every presidential order. C. To seek Rajya Sabha approval before advising dissolution. D. To submit every departmental file personally to the President.

Answer: A.

Explanation: [FACT] Article 78(c) protects collective consideration. The other choices invent duties not found in the Article.

OM6. Article 88

A Union minister who belongs to Rajya Sabha:

A. may vote only in joint sittings. B. may speak and participate in Lok Sabha but cannot vote there merely as minister. C. cannot speak in Lok Sabha. D. may vote in both Houses.

Answer: B.

Explanation: [FACT] Article 88 permits participation in either House, joint sittings and relevant committees, but does not confer a vote in a House of which the person is not a member.

OM7. Ministry-size cap

The Union Council of Ministers, including the Prime Minister, may not exceed:

A. a number fixed by the President for each ministry. B. 15% of the combined membership of both Houses. C. 15% of total Lok Sabha membership. D. 10% of Lok Sabha membership.

Answer: C.

Explanation: [FACT] Article 75(1A) uses total Lok Sabha membership as the base. The PM is included.

OM8. Defector bar

Article 75(1B) primarily prevents:

A. every defeated election candidate from becoming a minister. B. a non-member from using Article 75(5). C. every Rajya Sabha member from holding Cabinet rank. D. a member disqualified under the specified Tenth Schedule rule from gaining ministerial office during the constitutional bar period.

Answer: D.

Explanation: [FACT] The 91st Amendment linked specified defection disqualification to a temporary ministerial bar. It did not abolish the non-member window.

OM9. Collective responsibility

Which consequence follows most directly from Article 75(3)?

A. A carried Lok Sabha no-confidence motion requires the whole ministry to go. B. Every minister must personally vote on every Cabinet decision. C. Rajya Sabha may remove the ministry by simple majority. D. One minister's resignation automatically dissolves Lok Sabha.

Answer: A.

Explanation: [FACT] Collective responsibility is to Lok Sabha and binds the ministry as a unit, including Rajya Sabha ministers.

OM10. Individual responsibility

The most accurate description of individual ministerial responsibility is:

A. Every departmental mistake constitutionally requires resignation. B. A minister holds office during presidential pleasure, operationally enforced through PM-led advice and discipline. C. Parliament directly dismisses one minister through no-confidence. D. It is identical to criminal liability.

Answer: B.

Explanation: [FACT] Article 75(2) provides pleasure tenure. [ANALYSIS] The PM is the practical political enforcer; resignation conventions are not automatic.

OM11. "No legal responsibility"

Which statement correctly explains India's absence of British-style universal legal responsibility?

A. Only civil servants can be prosecuted for government decisions. B. Courts cannot review any ministerial action. C. A universal ministerial countersignature is not required for every presidential act, but ministers remain subject to ordinary and public law. D. Ministers enjoy complete immunity from law.

Answer: C.

Explanation: [LIMIT] "No legal responsibility" is a narrow comparative proposition. It does not displace criminal, civil, statutory or constitutional accountability.

OM12. Council and Cabinet

Which statement is correct?

A. The Council is a smaller part of the Cabinet. B. Cabinet and Council are constitutionally identical in membership. C. Their membership is fixed at 60-70 and 15-20 respectively. D. The Cabinet is the inner Cabinet-rank decision forum within the wider Council, and both sizes are variable.

Answer: D.

Explanation: [FACT] The Council includes all ministers; the Cabinet contains the PM and Cabinet-rank ministers. [LIMIT] Actual numbers are not permanent.

OM13. Cabinet in the Constitution

The word "Cabinet" has an express constitutional role in:

A. Article 352(3), including the written-decision safeguard for national emergency. B. Article 280, for Finance Commission. C. Article 148, for CAG appointment. D. Article 54, for presidential election.

Answer: A.

Explanation: [FACT] The 44th Amendment inserted the Cabinet-written-decision safeguard and an explanation identifying Cabinet for Article 352.

OM14. Ministerial rank

Which is correct?

A. A Minister of State with independent charge is automatically a Cabinet Minister. B. Conventional ranks do not all have to exist at every time, and independent charge does not itself confer Cabinet rank. C. Deputy Prime Minister is a separate constitutional executive. D. Deputy Ministers are mandated by Article 75.

Answer: B.

Explanation: [LIMIT] The rank structure is conventional and variable. Cabinet attendance may occur by invitation without changing rank.

OM15. PM's exit

Which event ends the existing PM-headed ministry as a political Council?

A. Resignation of any Minister of State. B. Referral of a bill to a standing committee. C. Resignation or death of the Prime Minister. D. Prorogation of Rajya Sabha.

Answer: C.

Explanation: [FACT] Article 74 requires a Council with the PM at its head. One minister's exit does not collapse it; the PM's exit does.

OM16. AoB and ToB Rules

Which pairing is correct?

A. AoB fixes Cabinet Committee count; ToB fixes Lok Sabha seats B. AoB - how a case travels; ToB - which ministry owns it C. Both are framed under Article 309 D. AoB allocates subjects; ToB prescribes disposal, consultation and approval procedure

Answer: D.

Explanation: [FACT] Both Rules are framed under Article 77(3). A useful memory line is AoB = address; ToB = travel.

OM17. Cabinet Committees

Cabinet Committees are best described as:

A. extra-constitutional ministerial bodies, standing or ad hoc, constituted under executive business practice. B. parliamentary committees chaired by the Speaker. C. civil-service committees without ministers. D. permanent constitutional bodies with fixed membership.

Answer: A.

Explanation: [FACT] They are executive ministerial mechanisms supported by Cabinet Secretariat, not parliamentary or constitutional committees.

OM18. Current committee composition

For a present-tense question on Cabinet Committee chairmanship, the safest method is to:

A. infer the chair from the committee's subject. B. verify the latest Cabinet Secretariat notification because chairs and composition vary. C. assume every committee is PM-chaired. D. rely on a 2019 textbook list.

Answer: B.

Explanation: [CURRENT] The official page has a document dated 27 July 2026. [LIMIT] A dated notification, not a generalisation, controls current composition.

OM19. Cabinet Secretariat

Which is an official Cabinet Secretariat function?

A. Replacing the minister-in-charge in every statutory function. B. Exercising judicial review. C. Supporting Cabinet/Cabinet Committees, administering business rules and coordinating ministries. D. Electing the Prime Minister.

Answer: C.

Explanation: [FACT] The official functions page confirms secretarial support, records, coordination, crisis management and implementation monitoring.

OM20. PMO

Which distinction is correct?

A. PMO is created by Article 78. B. PMO is custodian of Cabinet records by constitutional command. C. PMO and Cabinet Secretariat are synonyms. D. PMO supports the PM, while Cabinet Secretariat supports Cabinet procedure and cross-ministry coordination.

Answer: D.

Explanation: [FACT] PMO is non-constitutional/non-statutory. Formal legal competence remains with the authorities designated by Constitution, statute and business rules.

OM21. Kitchen cabinet

A kitchen cabinet is:

A. an informal trusted circle whose advice must be translated through formal decision channels. B. a permanent Cabinet Committee. C. the Cabinet defined by Article 352. D. a Committee of Secretaries.

Answer: A.

Explanation: [ANALYSIS] It may improve candour and speed, but has no independent authority and may include non-ministers.

OM22. Group of Ministers

Which statement is most accurate?

A. Every GoM is constitutionally permanent. B. A GoM is generally an ad hoc ministerial coordination mechanism whose mandate and existence vary. C. A GoM can amend the Constitution by decision. D. A GoM is composed only of civil servants.

Answer: B.

Explanation: [FACT] GoMs handle specified cross-ministry issues. [LIMIT] Historical GoMs or EGoMs should not be assumed current.

OM23. Caretaker ministry

Which is correct?

A. Dissolution removes the need for any Council of Ministers. B. A caretaker ministry has no power to administer emergencies. C. Caretaker continuity rests mainly on convention, with restraint on major irreversible action unless necessity requires it. D. The Constitution contains a complete caretaker-government code.

Answer: C.

Explanation: [FACT] *U. N. R. Rao* preserves the need for ministerial advice after dissolution. [LIMIT] Caretaker restraint is primarily conventional.

OM24. Coalition responsibility

In a coalition Union government:

A. Article 75(3) is suspended. B. Public disagreement automatically invalidates every Cabinet decision. C. Each party is separately responsible only to Rajya Sabha. D. The legal rule of collective responsibility remains, though policy and portfolio choices are negotiated.

Answer: D.

Explanation: [FACT] Coalition form changes political incentives, not the constitutional confidence rule.

OM25. Prime-ministerial government

Which evidence most strongly supports the prime-ministerial-government thesis?

A. PM control over ministerial composition, portfolios, Article 78 communication and central political leadership. B. Rajya Sabha's power to remove the ministry. C. A fixed constitutional Cabinet size. D. Judicial appointment of ministers.

Answer: A.

Explanation: [ANALYSIS] These levers concentrate practical authority. [LIMIT] Cabinet, allies, Parliament, courts and federalism still constrain.

OM26. Parliamentary accountability

Which institution links independent audit evidence most directly to legislative financial scrutiny?

A. Kitchen cabinet. B. Public Accounts Committee working with CAG reports. C. PMO. D. Cabinet Committee on Accommodation.

Answer: B.

Explanation: [FACT] PAC-CAG scrutiny is a named financial-accountability route, though generally post-facto.

OM27. Ambedkar resignation

Which statement is accurate?

A. Ambedkar was removed under Article 75(1B). B. Ambedkar resigned in 1953 after a no-confidence vote. C. Ambedkar tendered his resignation in 1951 over the Hindu Code Bill issue, and it was accepted. D. Ambedkar remained in Cabinet until 1956.

Answer: C.

Explanation: [FACT] The correct year is 1951. [LIMIT] Use the episode as an illustration of ministerial disagreement, not as constitutional text.

OM28. Article 77

Which statement is correct?

A. Article 77 rules are framed by the Chief Justice. B. Article 77 makes every executive act the President's personal decision. C. Article 77 prevents delegation within ministries. D. Executive action is expressed in the President's name, authenticated under rules, and organised through business rules.

Answer: D.

Explanation: [FACT] Article 77 supplies form, authentication and transaction/allocation structure without creating personal presidential government.

Remedial MCQs - strict B -> B -> C -> D rotation

R1. Cap base

The 15% Union ministry cap uses:

A. total Lok Sabha membership. B. combined parliamentary membership. C. a number chosen by Cabinet. D. elected Lok Sabha membership only, excluding vacancies.

Answer: A.

Remedy: Article 75(1A) says total Lok Sabha membership and includes the PM in the minister count.

R2. Information duty

The Article that specifically requires the PM to furnish information sought by the President is:

A. Article 88. B. Article 78. C. Article 75. D. Article 352.

Answer: B.

Remedy: Remember 78 as the PM-President information bridge.

R3. Size trap

Which statement is accurate?

A. Cabinet Committees determine the constitutional cap. B. Cabinet size is permanently 15-20. C. Actual Council and Cabinet sizes vary; only the Article 75(1A) maximum controls the Council. D. Council size is permanently 60-70.

Answer: C.

Remedy: Learn a maximum, not a dated head count.

R4. Legal-responsibility trap

"No legal responsibility" means:

A. civil servants alone bear legal liability. B. ministers cannot be prosecuted. C. courts cannot review government action. D. India lacks a universal countersignature rule, not ordinary legal accountability.

Answer: D.

Remedy: Treat the phrase as a narrow India-UK comparison.

R5. Caretaker continuity

After Lok Sabha dissolution:

A. a Council remains necessary for continuity until successor arrangements. B. the President governs personally. C. Rajya Sabha elects a temporary PM. D. all Union executive power stops.

Answer: A.

Remedy: *U. N. R. Rao* prevents an executive vacuum.

R6. Committee chair

Which statement should be used in a current answer?

A. All Cabinet Committees are chaired by PM. B. Chairmanship varies and must be checked against the latest notification. C. Only parliamentary committees have chairs. D. Cabinet Secretary chairs every Cabinet Committee.

Answer: B.

Remedy: Ministers chair Cabinet Committees as notified; the Cabinet Secretary coordinates administrative committees.

R7. Solidarity example

The corrected Ambedkar reference is:

A. resignation in 1953 over Article 356. B. resignation in 1961 over a Cabinet Committee. C. resignation tendered in 1951 over the Hindu Code Bill issue. D. removal in 1952 under the Tenth Schedule.

Answer: C.

Remedy: Fix the date as 1951 and keep the use illustrative.

R8. Other-House participation

A Rajya Sabha minister in Lok Sabha may:

A. neither speak nor participate. B. vote on Money Bills only. C. vote but not speak. D. speak and participate, but not vote by virtue of ministerial office.

Answer: D.

Remedy: Article 88 expands voice, not House membership.

PYQS AND ANSWER PRACTICE

Verified routed PYQs

PYQ 1 - UPSC Prelims 2020, GS-I, Q19

Verified neutral demand: Appointment of a minister who is not a member of the legislature, read with disqualification from ministerial office.

Provenance caution: The official question paper is routed locally, but the exact option wording and official answer key are unavailable locally. No answer letter is invented here.

Doctrinal model solution:

- [FACT] Article 75(5) permits a person who is not a member of either House to be appointed a Union minister, but that person ceases after six consecutive months unless membership of either House is obtained.
- [FACT] Article 75(1B), inserted by the 91st Amendment, separately bars a member disqualified under the specified Tenth Schedule provision from appointment as minister for the constitutional period.
- [ANALYSIS] A correct solution must therefore distinguish **temporary non-membership**, which Article 75(5) permits, from **constitutional disqualification**, which cannot be bypassed by invoking the six-month window.
- [LIMIT] Without the verified options and key, this package does not assign an official answer position.

Examiner note: The trap is the word "non-member." Non-membership alone is not disqualification; the Constitution gives six months. A defection-based bar is a different rule.

Why this earns marks: It names both controlling clauses, separates two legal categories and avoids manufacturing an unverified key.

PYQ 2 - UPSC Prelims 2022, GS-I, Q14

Verified neutral demand: Categories of Union ministers and the constitutional size of the Council of Ministers.

Provenance caution: The official question paper is routed locally, but the exact option wording and official answer key are unavailable locally. No answer letter is invented here.

Doctrinal model solution:

- [FACT] Standard Union practice recognises Cabinet Ministers, Ministers of State and Deputy Ministers; Ministers of State may hold independent charge or be attached to Cabinet Ministers.
- [FACT] Article 75(1A), inserted by the 91st Amendment, limits the total number of ministers including the PM to **not more than 15% of the total membership of Lok Sabha**.
- [LIMIT] The Constitution does not prescribe a permanent actual Council size and does not require every conventional rank to be present.
- [ANALYSIS] Any option fixing the Council at a permanent number, calculating the cap on both Houses, excluding the PM, or treating the three ranks as an exhaustive constitutional code must be rejected.

Examiner note: Separate a **constitutional maximum** from a **variable political strength**, and a **conventional rank structure** from constitutional text.

Why this earns marks: It resolves both parts of the routed demand while preserving the official-key caveat.

PYQ 3 - UPSC GS-II 2024, Q3

Question: "The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy." Elucidate. **10 marks | 150 words**

Demand decoding:

- "Elucidate" requires the mechanism to be made clear, not a generic advantages-disadvantages list.
- "Parliamentary supremacy" in India means effective legislative control and deliberation, not British-style legal sovereignty.
- A high-scoring answer accepts the tendency, supplies named evidence and then qualifies it.

Model answer:

Claim: [ANALYSIS] India's Cabinet remains responsible to Lok Sabha under Article 75(3), yet the same executive-legislative fusion permits a disciplined government to dominate Parliament's daily work.

Named evidence: [FACT] The governing majority, party whip and Tenth Schedule reduce independent voting. Cabinet control over business and time, guillotining of demands for grants, delegated legislation, ordinances under Article 123 and contested use of the Article 110 Money Bill route can compress prior scrutiny. PMO-centred coordination may further shift Cabinet government toward prime-ministerial government.

Analysis: These mechanisms turn Parliament from agenda-setter into reactor and can make legislation or financial approval resemble ratification.

Qualification and verdict: [LIMIT] Parliament retains no-confidence, Question Hour, DRSCs, PAC-CAG scrutiny, bicameral review and judicially enforced constitutional limits. Cabinet growth has therefore marginalised Parliament's **deliberative and control functions**, not transferred legal sovereignty. More sittings, routine committee scrutiny and a narrower whip are the appropriate remedies.

Examiner note: Do not write that Parliament is legally sovereign in India or that every government-bill defeat removes the ministry.

Why this earns marks: It uses Article 75(3), Tenth Schedule, Articles 123/110 and named correctives in a direct 10-mark mechanism chain.

Original solved Mains practice

M1. "The President's discretion in appointing a Prime Minister under a hung Lok Sabha is real but not arbitrary." Examine. (10 marks, 150 words)

Directive fidelity: "Examine" requires the constitutional source, the situations activating judgment, the controlling limits and a reasoned verdict.

Model answer:

Claim: [FACT] Article 75(1) says the President appoints the Prime Minister but gives no detailed procedure. Under a clear majority, convention removes meaningful choice; in a hung Lok Sabha, the President must identify who is most likely to command confidence.

Named evidence: [ANALYSIS] Objective support letters, alliance decisions and an early floor test discipline the invitation. The Charan Singh episode of 1979 and Vajpayee ministry of 1996 show that appointment does not itself establish durable majority. *S. R. Bommai* primarily concerns States, but its floor-test principle supports legislative rather than subjective proof.

Analysis: Presidential judgment is therefore procedural: it enables government formation while Parliament is unable to speak immediately. It cannot create an independent presidential government or permanently decide numbers outside the House.

Qualification and verdict: [LIMIT] Exact invitation order is not exhaustively codified and factual configurations differ. Yet neutrality, objective material, opportunity for an alternative and prompt Lok Sabha testing convert discretion into bounded constitutional trusteeship, not personal choice.

Examiner comment: A strong answer separates appointment from confidence and avoids treating *Bommai* as a direct Union appointment code.

Why this earns marks: It uses Article 75(1), two named episodes, the floor-test principle and a precise qualification within 10-mark scale.

M2. Distinguish collective, individual and legal responsibility of Union ministers. (10 marks, 150 words)

Directive fidelity: "Distinguish" requires separate legal bases, mechanisms and consequences, not a general essay on accountability.

Model answer:

Claim: Ministerial responsibility has three different meanings. [FACT] Collective responsibility under Article 75(3) makes the whole Council answerable to Lok Sabha: loss of confidence removes all ministers, while Cabinet solidarity requires public support for settled policy.

Named evidence: [FACT] Individual responsibility follows Article 75(2): each minister holds office during presidential pleasure, operationally enforced through the PM's advice. One minister may therefore leave without the ministry falling. Ambedkar's resignation tendered in 1951 over the Hindu Code Bill issue illustrates exit after fundamental disagreement.

Analysis: "Legal responsibility" is a narrower comparative concept. India has no universal British-style requirement that every presidential act carry a ministerial countersignature; Article 77 instead regulates expression and authentication.

Qualification and verdict: [LIMIT] Absence of universal countersignature does not immunise ministers from criminal, civil, statutory or constitutional law. Thus collective responsibility protects democratic confidence, individual responsibility enables internal discipline, and ordinary legal responsibility preserves rule of law.

Examiner comment: Keep Article 75(3), Article 75(2) and the countersignature distinction separate.

Why this earns marks: It directly compares the three concepts through provisions, consequence, example and legal caveat.

M3. The Council of Ministers and the Cabinet are related but not interchangeable. Discuss the distinction and the role of Cabinet Committees. (15 marks, 250 words)

Directive fidelity: "Discuss" requires definition, comparison, operational significance, committee linkage and limitations.

Model answer:

Claim: [FACT] Articles 74-75 create the Council of Ministers as the PM-headed constitutional ministry collectively responsible to Lok Sabha. The Cabinet is its smaller Cabinet-rank core that regularly deliberates and decides major policy.

Named evidence: Article 352(3), inserted by the 44th Amendment, requires a written Cabinet decision for national emergency and explains Cabinet as the PM plus ministers of Cabinet rank. This prevents the common error that Cabinet is wholly absent from today's Constitution. The Council includes Cabinet Ministers, Ministers of State and any other conventional ranks in use; its total strength, including PM, is capped by Article 75(1A), but its actual size is variable.

Analysis: The distinction makes responsible government workable. The whole Council bears parliamentary responsibility, while the Cabinet supplies focused collective judgment. Cabinet decisions bind non-Cabinet ministers through solidarity.

Cabinet Committees add a specialised layer. [FACT] They are extra-constitutional, standing or ad hoc ministerial bodies operating under business-rule practice. They screen complex issues, coordinate portfolios and accelerate decisions. Cabinet Secretariat supplies agendas, records and implementation monitoring.

Qualification: [CURRENT] Committee number, membership and chairs vary; the current official page has a document dated 27 July 2026. It is wrong to freeze a textbook count or claim that every committee except one is PM-chaired. Informal kitchen cabinets also cannot substitute for formal competence.

Verdict: The Council supplies constitutional legitimacy and accountability; Cabinet supplies the central decision forum; committees supply specialisation. Their value depends on preserving Cabinet review and parliamentary responsibility.

Examiner comment: The Article 352 reference and the variable-size caution distinguish an updated answer from legacy notes.

Why this earns marks: It combines Articles 74, 75, 352, ministerial ranks, committee mechanism and current-control caution.

M4. Explain how Article 77, the Rules of Business, the Cabinet Secretariat and the PMO together shape Union executive decision-making. (15 marks, 250 words)

Directive fidelity: "Explain" requires a connected operating chain and clear institutional distinctions.

Model answer:

Claim: [FACT] Article 77 converts PM-led political authority into orderly governmental action. Clause (1) expresses executive action in the President's name; clause (2) provides authentication; clause (3) authorises rules for allocation and convenient transaction of business.

Named evidence: The Allocation of Business Rules, 1961 answer "who handles what"; the Transaction of Business Rules, 1961 answer "how the case is decided." They permit routine disposal by ministries under ministers-in-charge while reserving defined cases for inter-departmental consultation, the PM, Cabinet Committees, Cabinet or President.

The official Cabinet Secretariat functions page states that the Secretariat works directly under the PM, administers both rule sets, supports Cabinet and Cabinet Committees, records decisions, monitors implementation, resolves inter-ministerial differences and coordinates major crises. The Cabinet Secretary also anchors Committees of Secretaries.

Analysis: This arrangement combines departmental expertise with whole-of-government consistency. Escalation prevents one ministry from deciding another's allocated business, while delegation prevents every file from choking the apex.

The PMO performs a different function: [FACT] it is a non-constitutional, non-statutory staff office supporting the PM through policy, administrative and monitoring assistance.

Qualification and verdict: [LIMIT] Neither PMO influence nor Cabinet Secretariat coordination creates independent legal competence. Excessive PMO escalation can weaken ministerial ownership; weak coordination can produce silos. The correct balance is subsidiarity below and collective resolution above.

Examiner comment: Do not merge Cabinet Secretariat with PMO or describe Article 77 action as the President's personal decision.

Why this earns marks: It provides a complete Article -> rule -> institution -> decision -> accountability chain with official functions and a balanced conclusion.

M5. Has coalition politics diluted collective responsibility of the Union Council of Ministers? Analyse. (15 marks, 250 words)

Directive fidelity: "Analyse" requires breaking collective responsibility into components, testing each under coalition conditions and giving a graded verdict.

Model answer:

Claim: [FACT] Article 75(3) remains unchanged by coalition politics: the Council is collectively responsible to Lok Sabha and falls as a unit on loss of confidence. Coalition government alters the political operation of the doctrine, not its legal existence.

Named evidence: Collective responsibility contains confidence, solidarity and unified accountability. Coalition partners may bargain over portfolios, maintain separate manifestos and publicly dissent. Common minimum programmes and coordination committees become political substitutes for single-party homogeneity. India's short-lived governments in 1979, 1989-91 and 1996-98 show the instability risk, while full-term coalitions after 1999 and 2004 show that negotiated ministries can endure.

Analysis: Coalition bargaining can dilute solidarity because a PM cannot easily dismiss an ally's minister without risking majority. Responsibility may become segmented in public discourse, with each party crediting or blaming another. Yet the confidence dimension remains decisive: outside support withdrawal or ally exit matters because it changes Lok Sabha numbers, and the entire ministry must face the result.

Qualification: [ANALYSIS] Coalitions can also strengthen cabinet government by forcing consultation, federal voice and restraint on PMO centralisation. Conversely, a cohesive single-party majority may formally display solidarity while weakening deliberation through command.

Verdict: Coalition politics dilutes the **homogeneity and day-to-day solidarity** of collective responsibility, but not its Article 75(3) confidence core. The remedy is clearer coalition agreements, transparent coordination and regular parliamentary explanation, not abandonment of the doctrine.

Examiner comment: A binary "diluted/not diluted" answer misses the distinction between legal confidence and political solidarity.

Why this earns marks: It uses Article 75(3), three dimensions, named historical phases, counter-evidence and a qualified verdict.

M6. "The Prime Minister is no longer merely first among equals; Indian government increasingly operates as prime-ministerial government." Critically examine. (20 marks, 250 words)

Directive fidelity: "Critically examine" requires evidence for concentration, counter-evidence, political variation and a graded conclusion.

Model answer:

Claim: [ANALYSIS] India's Constitution establishes a PM-headed Cabinet system, but several structural levers can make the PM more than *primus inter pares*. The phrase "prime-ministerial government," associated with Crossman and Mackintosh, is an analytical description, not constitutional law.

Named evidence for concentration: First, Article 75(1) gives the PM decisive influence over ministerial appointment; portfolio allocation, reshuffle and removal discipline colleagues. Second, Article 78 makes the PM the constitutional communication channel to the President. Third, the PM chairs Cabinet, influences committee architecture and coordinates the legislative programme. Fourth, party leadership, electoral personalisation and advice on Lok Sabha dissolution magnify authority. Fifth, a strong PMO can centralise information, monitoring and appointments.

Analysis: These levers interact. Personnel control weakens internal dissent; information control shapes agenda; party discipline and the Tenth Schedule reduce parliamentary rebellion. Cabinet may therefore ratify decisions framed elsewhere, while ministers become implementation agents.

Counter-evidence: [FACT] Article 75(3) still makes responsibility collective and Lok Sabha confidence indispensable. Cabinet colleagues possess expertise and political bases; coalition allies may veto policy or personnel. Federal governments, Rajya Sabha, courts, statutory bodies, audit, elections and policy complexity constrain unilateral control. Cabinet Secretariat and business rules also require institutional consultation.

Qualification: Prime-ministerial power is variable. It rises under cohesive majority, party dominance and centralised communication; it falls under coalition dependence, internal party contest and strong institutions. A powerful PM can improve coordination and crisis response without destroying Cabinet government.

Verdict: India has not legally replaced cabinet government. It displays a **prime-ministerial tendency within cabinet government**, constitutional when leadership works through competent institutions and problematic when it hollows out deliberation, ministerial ownership and parliamentary scrutiny.

Examiner comment: Attribute scholarly tags and judge variation; do not convert political science labels into Articles.

Why this earns marks: It supplies more than six named evidence units, a mechanism of concentration, institutional counterweights and a conditional verdict suited to 20 marks.

M7. Strong executive coordination and parliamentary accountability are both necessary for responsible government. Evaluate the balance in India's PM-Council system and suggest reforms. (20 marks, 250 words)

Directive fidelity: "Evaluate" requires criteria, gains, deficits, named accountability channels, reform and an overall judgment.

Model answer:

Claim: [FACT] Articles 74-75 make the PM-led Council capable of unified action and collectively responsible to Lok Sabha. Articles 77-78 then provide administrative order and presidential information. Responsible government fails if coordination is weak, but also if coordination eliminates scrutiny.

Named evidence for coordination: The AoB Rules allocate ownership; ToB Rules prescribe consultation and escalation. Cabinet and its committees resolve major political choices. The Cabinet Secretariat supports agendas, records, inter-ministerial consensus, crisis coordination and implementation monitoring. PMO support can add strategic direction and cross-government follow-up.

Analysis of deficit: A secure majority, whip and Tenth Schedule can make House outcomes predictable. Government control of time, guillotining, limited committee referral, delegated legislation and ordinances can reduce prior examination. PMO centralisation may weaken Cabinet and departmental initiative, while opaque coalition bargaining can blur who is responsible.

Named accountability correctives: Article 75(3) no-confidence, Article 88 participation, Question Hour, censure and debates, DRSCs, demands for grants, PAC-CAG scrutiny, bicameralism, judicial review, federal politics and elections collectively prevent unchecked executive power.

Reform: Increase predictable sitting and scrutiny time; make committee referral routine with reasoned exceptions; consider limiting whip compulsion to survival and core commitments; strengthen delegated-legislation review; publish updated business allocations; use time-bound Cabinet Committees/GoMs; preserve records and implementation audits; apply subsidiarity so PMO handles strategic rather than routine decisions; and articulate caretaker-restraint conventions.

Qualification and verdict: [LIMIT] More procedure is not automatically more accountability; emergencies need speed and Cabinet confidentiality remains legitimate. The proper balance is **delegated departmental action, coordinated collective decision and visible parliamentary answerability**. Strong government is constitutionally valuable only when strength remains traceable to responsibility.

Examiner comment: Reforms must follow from diagnosed mechanisms; a generic "transparency and good governance" list is insufficient.

Why this earns marks: It integrates Articles 74-78 and 88, business rules, Cabinet Secretariat, PMO, parliamentary instruments and targeted reforms into one evaluative chain.